

HOUSE No. 3776

The Commonwealth of Massachusetts

PRESENTED BY:

Lindsay N. Sabadosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to an ADA paratransit program riders' bill of rights.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/8/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/9/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>1/9/2025</i>

HOUSE No. 3776

By Representative Sabadosa of Northampton, a petition (accompanied by bill, House, No. 3776) of Lindsay N. Sabadosa, Mindy Domb and Homar Gómez that public transit agencies that administers or provides for a paratransit program shall establish and implement a riders' bill of rights. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to an ADA paratransit program riders' bill of rights.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 161B of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following section:-

3 Section 15N. (a) As used in this section, the following words shall have the following
4 meanings unless the context clearly requires otherwise:

5 "Paratransit program", an Americans with Disabilities paratransit program or service
6 established pursuant to 42 U.S.C. sections 12101 to 12213.

7 "Public transit agency", the Massachusetts Bay Transportation Authority, the
8 Massachusetts Port Authority, each regional transit authority established pursuant to sections 2
9 and 14 or any other general or special law, and any other public transit agency, authority or
10 political subdivision that administers or provides for a paratransit program or service.

11 "Rider", a person who uses the paratransit program for transportation.

(b) A public transit agency, that administers or provides for a paratransit program shall establish and implement a riders' bill of rights for users of the paratransit program that provides for the following rights:

(1) The right to safe, reliable, timely and efficient paratransit transportation.

(2) The right to professional, courteous, and properly trained drivers and other personnel.

(3) The right to complete, timely, and accurate information about schedules, fares, routes, and procedures.

(4) The right to appeal denial of eligibility for the paratransit program.

(5) The right to appeal any actions related to use of the paratransit program.

(6) The right to have trips scheduled and provided within the time frames established by law.

(7) The right to on-time pickups and drop-offs in accordance with schedules.

(8) The right to safe and properly equipped vehicles that comply with accessibility laws.

(9) The right to receive assistance in boarding and exiting vehicles upon request.

(10) The right to travel without discrimination on the basis of disability.

(11) The right to complete trips once started without involuntary disruption.

(12) The right to have service animals accompany riders on transports.

(13) The right to privacy of rider information.

(14) The right to submit suggestions, complaints, and concerns regarding service.

(c) A public transit agency shall prominently display the riders' bill of rights established in this section on the agency's website and in all printed materials related to the paratransit program. The public transit agency shall make the riders' bill of rights available to riders in accessible formats upon request.

SECTION 2. This act shall take effect on January 1, 2027.